

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ELIZABETH ESCOBAR,

Plaintiff,

**SUMMONS TO THE
COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. JANICE FALETTE, Tax
944721; P.O. JOHN DOE # 1; and DET. JANE DOE # 1,
the individual defendant(s) sued individually and in their
official capacities,

Index:

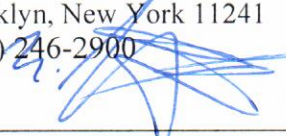
Basis of Venue: occurrence of
incident – 23rd Precinct, New York,
New York

Defendants.

----- X
To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
July 14, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; and P.O. JANICE FALETTE, Tax # 944721; P.O. JOHN DOE # 1; and DET. JANE DOE # 1, 23rd Precinct, 162 East 102nd Street, New York, New York 10029

SUPREME COURT OF THE STATE OF NEW YORK
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-against-

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incident – 23rd Precinct, New York,
New York

Defendants.

Jury Trial Demanded

-----X
Plaintiff Elizabeth Escobar, by and through her counsel, Michael Hueston, Esq.,
upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about April 16, 2015 through September 30, 2015. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; denial of a fair trial; malicious prosecution; implementation and continuation of an unlawful municipal policy, practice, and custom; intentional and negligent infliction of emotional distress; negligence; and respondeat superior liability. Plaintiff seeks compensatory and punitive

damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York Notices of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Plaintiff has satisfied all conditions precedent for the filing of this action, including appearing at a 50-hearing. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County; and jurisdiction is proper because the Supreme Court of the State New York, New York County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Elizabeth Escobar is a resident of the State of New York, living at 2075 2nd Avenue, Apt. # 3B, New York, New York 10029.

7. At all times herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

9. At all times alleged herein, defendants P.O. Janice Fallette, Tax # 944721; P.O. John Doe # 1; and Det. Jane Doe # 1 were employed as police officers with the 23rd Precinct, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

11. On April 16, 2015, several police officers operating from the 23rd Precinct located in New York County, New York, including upon information and belief, the individual defendants P.O. Janice Fallette, Tax # 944721; P.O. John Doe # 1; and Det. Jane Doe # 1 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On April 16, 2015 at approximately 11:00 a.m., at and in the vicinity of 23rd Precinct, 162 East 102nd Street, New York, New York 10029, the police without either consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

13. The police acted in concert in committing the illegal acts against plaintiff.

14. Prior to plaintiff's arrest, on April 14, 2015, at the 23rd Precinct plaintiff had made a complaint against her daughter for physically attacking her.
15. On April 14, 2015, the police, including P.O. Janice Fallette, documented the injuries caused by plaintiff's daughter and informed plaintiff that her daughter would be arrested based plaintiff's complaint and injuries.
16. Then on April 15, 2015, the police called plaintiff and informed her that she would need to return to the 23rd Precinct to be arrested.
17. On April 16, 2015, plaintiff returned to the 23rd Precinct.
18. The police arrested plaintiff.
19. Upon information and belief, the police arrested plaintiff based on a complaint they knew to be false and retaliatory that was lodged by plaintiff's daughter.
20. Upon information and belief, the police acted even though there was no probable cause to believe plaintiff had committed a crime.
21. Upon information and belief, the police acted even though they knew that plaintiff has filed a timely and credible complaint.
22. Upon information and belief, the police were motivated to act on the complaint and maliciously prosecute plaintiff because plaintiff's ex-husband is a retired New York City Police sergeant.
23. Upon information and belief, a detective at the 23rd Precinct had previously refused to arrest plaintiff because plaintiff's daughter's allegations were clearly false and maliciously motivated by plaintiff's ex-husband.
24. At the 23rd Precinct, the police handcuffed plaintiff in excessively tight handcuffs.

25. While plaintiff was being transported to Manhattan Central Booking, plaintiff told the police that the handcuffs were too tight and that she could not feel her thumbs.

26. The police told plaintiff that the handcuffs could not be loosened.

27. The police kept plaintiff at Manhattan Central Booking for many hours seated on a bench in their actual custody.

28. In violation of plaintiff's right to counsel and due process, an Assistant District Attorney interrogated plaintiff, in the presence of the police, for approximately 20 minutes.

29. The police were also present when plaintiff was intervened by an EMT at Central Booking.

30. The police did not place plaintiff in a cell at Central Booking but kept her with them.

31. During this time, plaintiff complained to the police, including P.O. Janice Fallette, about the excessive tightness of the handcuffs, telling them that she could not feel her fingers and that her hands were numb.

32. The police ignored her complaints.

33. The police kept plaintiff handcuffed for approximately eight or nine hours in severe pain and discomfort.

34. The police had rear-cuffed plaintiff.

35. The handcuffs were so tight and kept on for such a long period of time that the cuffing caused nerve contusion, nerve compression and wrist sprain.

36. There was no reason to keep plaintiff handcuffed in this manner.

37. The actions of the police were in violation of Patrol Guides 208-03 (Arrests - General Processing) and 203-11 (Use of Force).

38. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy and motivated by their favoritism to plaintiff's ex-husband (the retired NYPD police sergeant) initiated by false sworn complaint(s) and/or conversations, falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for various charges, including assault.

39. Plaintiff was released on her own recognizance.

40. By the time of plaintiff's release, she could not feel her fingers and thumbs.

41. The next day, plaintiff did not go to work hoping she would regain feeling in her hands.

42. When plaintiff did not regain feeling in her hands, she sought medical treatment for her injuries.

43. Medical professionals treated plaintiff's hands and wrists.

44. Medical professionals performed various tests, provided therapy, and eventually performed surgeries.

45. Medical professionals diagnosed plaintiff with wrist sprain, nerve contusion, and nerve compression.

46. Plaintiff underwent months of medication and physical therapy.

47. When plaintiff's condition did not improve, plaintiff underwent surgeries to decompress the nerves in both wrists.

48. Plaintiff had to wear braces to minimize her movement after the surgeries.
49. Plaintiff could not work because of her injuries.
50. Plaintiff had difficulty performing day-to-day functions with her hands.
51. After having to appear in criminal court the case against plaintiff was dismissed on September 30, 2015 in its entirety, terminating in plaintiff's favor.
52. Plaintiff was humiliated and embarrassed by the experience.
53. Plaintiff suffered physical injuries.
54. Plaintiff suffered financial loss.

General Allegations

55. Plaintiff did not resist arrest at any time during the above-described incidents.
56. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.
57. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.
58. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her rights.

59. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

60. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

63. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

66. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

69. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

72. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

73. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

74. The individual defendants' use of force upon plaintiff was objectively unreasonable.

75. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

76. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

77. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

78. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

79. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

80. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

81. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

82. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiff were illegal physical contacts.

83. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

84. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

85. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

86. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

87. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

88. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

TENTH CLAIM

(DENIAL OF A FAIR TRIAL)

89. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

90. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

91. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

92. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION FEDERAL LAW)

93. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

94. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

95. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

96. The individual defendants initiated the above-stated malicious prosecution in retaliation, because of favoritism to plaintiff's ex-husband (the retired NYPD police sergeant), and to cover up their illegal and unconstitutional conduct.

97. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

98. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

99. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

100. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

101. The individual defendants initiated the above-stated malicious prosecution in retaliation, because of favoritism to plaintiff's ex-husband (the retired NYPD police sergeant), and to cover up their illegal and unconstitutional conduct.

THIRTEENTH CLAIM

(MONELL CLAIM)

102. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

103. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

104. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) wrongfully arresting innocent persons; (2) using unreasonable force on individuals; and (3) maliciously prosecuting innocent persons because of favoritism to former police officers.

105. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

106. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

107. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

108. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

FOURTEENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

109. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

110. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

111. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

112. The defendants breached a duty owed to the plaintiff that either unreasonably endangered plaintiff's physical safety, or caused the plaintiff to fear for his/her own safety.

FIFTEENTH CLAIM

(NEGLIGENCE)

113. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

114. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

SIXTEENTH CLAIM

(RESPONDEAT SUPERIOR)

115. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

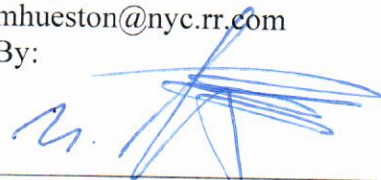
116. The individual defendants were acting within the scope of their employment when they committed the above described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

117. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
July 14, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By:



MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, Elizabeth Escobar, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

Elizabeth Escobar
Elizabeth Escobar

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 14th day of July, 2016, before me personally came and appeared ELIZABETH ESCOBAR to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
PUBLIC, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018 18

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

Elizabeth Escobar,

Plaintiff,

-against-

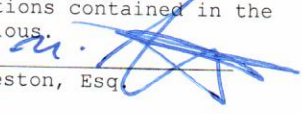
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney
duly admitted to practice law in the State of New York,
certifies that, upon information and belief based upon
reasonable inquiry, the contentions contained in the
annexed document are not frivolous.

Dated: 7/14/2016 Signature: 

Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2016

....., Esq.

Attorney for.....